

VCU318452 Felix, Jose vs. D.R. Klassen Packing, Inc.

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-08-04

Motion: Motion for Preliminary Approval of Class Action and PAGA Settlement

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Re: Felix, Jose vs. D.R. Klassen Packing, Inc.

Case No.: VCU318452

Date: August 4, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Motion for Preliminary Approval of Class Action and PAGA Settlement

Tentative Ruling: To continue the motion to August 25, 2026, 8:30 am, Dept. 2; to order a supplemental declaration as to the notice period, lodestar, presently incurred costs and proof of submission to the LWDA.

1. Sufficiency of Amount of Settlement (Net Estimated: \$40,166.67)

The gross settlement amount is \$100,000. Plaintiff estimates approximately 281 proposed Class Members, providing an estimated average payout of \$142.94 per member.

The Class Members consist of:

Non-exempt current or former employees who work or worked for Defendants, D.R. Klassen Packing, Inc. and D.R. Klassen Farms, Inc. (collectively, "Defendant") from February 14, 2021 to December 31, 2025

Plaintiff primarily alleged the following violations:

(1) Unpaid Missed Rest Breaks (Labor Code § 226.7, IWC Wage Order Nos. 13-2001 and 14-2001, Section 12); (2) Unpaid Missed/Interrupted Meal Breaks (Labor Code §§ 226.7, 512, and 1198; IWC Wage Order Nos. 13-2001 and 14-2001, Section 11); (3) Failure to Pay for All Overtime Wages Worked (Labor Code §§ 510, 860, 1194, 1198, and IWC Wage Orders No. 14-2001, Section 3); (4) Failure to Pay Minimum Wage and Pay for All Wages Earned and Pay for Vacation Time (Labor Code §§ 204, 227.3, 1194, and 1197); (5) Failure to Reimburse Required Business Expenses (Labor Code § 2802); (6)

Failure to Maintain Accurate Personnel and Payroll Records, Improper Wage Statements (Labor Code §§ 226(a), 1174, 1198.5, 2810.5; IWC Wage Orders Nos. 13-2001 and 14-2001, Section 7); (7) Failure to Pay Wages Upon Separation (Labor Code §§ 201-203); (8) Failure to Pay Sick Days (Labor Code §§ 246(a), 246.5); (9) Failure to Pay COVID-19 Supplemental Sick Leave (Labor Code §§ 246, 248.1, 248.2, 248.6); (10) Failure to Provide Suitable Seating (IWC Wage Order Nos. 14-2001, Section 13); (11) Failure to Safe Working Environment (Labor Code §§ 6400, 6401); (12) Reporting Time Pay (IWC Wage Order Nos. 13-2001 and 14-2001, Section 5); (13) Whistleblower Retaliation (Labor Code §§ 1102-1102.5); (14) Complaints about Dangerous Working Conditions (Labor Code § 6310); (15) Failure to Allow Inspection of Employment Records (Labor Code §§ 1198.5, 2810.5); (16) Unfair Business Practices (Bus. & Prof. Code §§ 17200, et seq.); and Claims for civil penalties under the Private Attorneys General Act of 2004 ("PAGA")

Plaintiff provides estimates of the maximum recovery for each of the asserted wage and hour claims and penalties with information showing how the estimates were calculated including the damages models utilized. (Declaration of Mirabel ¶¶70, 71.) Plaintiff has provided a detailed discussion of the value of each claim, applied various discount rates regarding the chance of success as to each claim which corresponds to the final gross settlement amount. The total estimated reasonable recovery after applying various discount rates is \$152,000. (Declaration of Mirabel ¶71.)

After agreeing to participate in early mediation, Defendant informally produced time and pay records for Settlement Class members, key class data points, and other documents and information relevant to the claims alleged in advance of mediation. The parties reached the settlement after a full day mediation.

The Court finds the information provided in support of the gross settlement amount sufficient for the Court to preliminarily approve the gross settlement amount, as the settlement amount appears to be within the recognized range of reasonableness given the claims and defenses asserted in this case.

Plaintiff's deductions from the gross settlement of \$100,000 are proposed as follows:

Proposed Attorney Fees (33.3%):

\$33,333.33

Proposed Attorney Costs (up to):

\$10,000.00

Proposed Enhancement Payment to Plaintiff:

\$1,500.00

Proposed Settlement Administrator Costs

\$10,000.00

Proposed LWDA PAGA Payment

\$5,000.00

Proposed Net Settlement Amount

\$40,166.67

2. Class Notice

The settlement agreement provides no claim form will be required of class members to participate in distributions. Only those wishing to object or opt out must file notice with the settlement administrator. Objections or opt out notices are to be made within 45 days.

The Court regularly approves notice periods of 60 days or longer. The class notice period, therefore, is not approved.

With respect to the content of the Notice, the Court finds the Class Notice to be reasonable. It clearly provides to the class member an estimate of the settlement share the employee is to receive and provides adequate instructions for any class member to opt out of the settlement or to submit an objection.

3. Enhancement Awards to Class Representative

The Court preliminarily approves Plaintiff Felix as Class Representative for settlement purposes. The proposed enhancement award to Plaintiff is \$1,500. The enhancement payment is approved.

4. Attorneys' Fees and Costs

Attorneys' fees of 33 1/3% of the gross settlement fund of \$100,000 or \$33,333.33 and costs not to exceed \$10,000 are sought by Plaintiff's counsel.

Counsel has utilized the percentage of common fund methodology as well as provided adequate lodestar information to evaluate the reasonableness of the fee request.

Although the Court recognizes the utilization of the percentage of the common fund methodology to award attorneys' fees, the Court requires a declaration from counsel that provides an estimate as to what the lodestar would be in this case. The ultimate goal of the Court is to award reasonable attorneys' fees irrespective of the method of calculation. As such, the court needs to know the estimate of the approximate lodestar supported by declarations for preliminary approval. Counsel should submit information as to the time spent on this action and the hourly rates of all counsel working on the case. Without such information, the Court declines to preliminarily approve the fees.

The Court also cannot preliminarily approve costs up to \$10,000.00 without a declaration which states the costs currently expended.

The Court, however, finds that Plaintiff's counsel is an experienced class action attorney through the declaration of counsel.

5. Claims Administrator

The Court preliminary approves IYLM as the claims administrator for this class action based both on prior experience with this settlement administrator in other class actions litigated in this Court and on estimate provide and attached to the declaration of counsel. The Court preliminarily approves administration costs not to exceed \$10,000.

6. Unclaimed Settlement Proceeds

The Court preliminarily approves the distribution of unclaimed settlement proceeds to California Controller's Office Unclaimed Property Division, with an identification of the Participating Class Member to whom the funds belong, in accordance with Code of Civil Procedure section 384.

7. Release

The Court finds the proposed release of claims reasonable under the circumstances.

8. LWDA Notice

Counsel's declaration indicates confirmation from the LWDA of receipt of proof of submission of the proposed settlement agreement. (Lab. Code, § 2699, subd. (l)(2).) (Declaration of Mirabel ¶90 – Exhibit 8.) However, the Court notes no Exhibit 8 attached to the declaration.

9. Class Certification

Code of Civil Procedure section 382 permits certification "when the question is of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court." (Code Civ. Proc. § 382.) The plaintiff bears the burden of demonstrating that class certification under section 382 is proper. (See *City of San Jose v. Superior Court* (1974) 12 Cal.3d 447, 460.) To do so, "[t]he party advocating class treatment must demonstrate the existence of an ascertainable and sufficiently numerous class, a well-defined community of interest, and substantial benefits from certification that render proceeding as a class superior to the alternatives." (*Brinker Restaurant Corp. v. Superior Court* (2012) 53 Cal.4th 1004, 1021.)

Here, the Motion and accompanying declaration of Counsel sufficiently sets forth the basis for finding the class is numerous and ascertainable as 281 employees have been identified through Defendant's employment records. Additionally, common questions of law and fact predominate within the individual causes of action based on class wide policies and procedures of Defendant. Further, the class representative, through their declaration, indicates they will adequately and fairly represent the Class Members and will not place their interests above any Class Member. The Class Representative was employed by Defendant during the relevant time period and thus worked under the same policies and procedures as the Class Members.

Therefore, the Court continues this motion for preliminary approval to August 25, 2026, 8:30 am, Dept. 2 and orders a supplemental declaration as to the notice period, lodestar, presently incurred costs and proof of submission to the LWDA.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.